

SUBMISSION-QUALITY KNOWLEDGE HUB

Pre-Filing Readiness Checklist

Avoiding a Refuse-to-Receive (RTR) decision on your ANDA

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Independent educational resource — please read

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Why this matters

Under 21 CFR 314.101(d), FDA can decline to receive an ANDA that is incomplete on its face. A single “major” deficiency causes a Refuse-to-Receive (RTR); ten or more “minor” deficiencies do the same. RTR is not a scientific rejection — it means the application never entered the review queue, costing months and, often, queue position. Most RTR triggers are administrative or completeness issues that a disciplined pre-filing check would catch.

The two RTR triggers, in plain terms

MAJOR deficiency → one is enough. FDA judges the application incomplete on its face under 21 CFR 314.101(d)(3) and refuses to receive it.

MINOR deficiencies → if FDA counts fewer than ten (nine or fewer), it notifies you and gives a 7-calendar-day window to correct or amend. Miss the window, or hit ten or more minor deficiencies, and the ANDA is refused.

The checklist below is organized so you can sign off section by section before submission. Treat any unchecked box as a hold on filing.

Section A — Administrative & form completeness

- ☐ Form FDA 356h is the current edition, fully completed, and signed by an authorized U.S. agent or applicant official.
- ☐ Application type, submission type, and sub-type fields are correct and internally consistent.
- ☐ Establishment information (Field 28) lists every manufacturing, packaging, testing, and control site for both drug substance and drug product.
- ☐ Each facility entry includes name, full address, FEI number, DUNS number, and DMF number where applicable — with no blanks or “TBD.”
- ☐ Facility roles on Form 356h match exactly what appears in Module 3 and the cover letter (no site listed in one place but missing in another).

- ☐ Cover letter clearly identifies the Reference Listed Drug (RLD), strength(s), dosage form, and the basis of submission.
- ☐ All required certifications and statements are present and signed.

Section B — Patent & exclusivity (505(j)(2)(A)(vii))

- ☐ Correct paragraph certification (I, II, III, or IV) is made for every relevant Orange Book patent.
- ☐ For any Paragraph IV certification, the notice and statutory basis are addressed and the certification is internally consistent across the application.
- ☐ Exclusivity statement addresses any unexpired exclusivity on the RLD.

Section C — Labeling

- ☐ Proposed labeling is provided and is a permitted comparison to the RLD labeling (differences limited to those legally allowed for a generic).
- ☐ Annotated labeling / side-by-side comparison with the RLD is included where expected.
- ☐ Strength, dosage form, and route on the label match the application and Form 356h throughout.

Section D — Module 3 / CMC presence check (filing-level, not full review)

At the filing stage FDA checks that required CMC content is present and organized — not whether every datum passes review. Missing whole sections is a classic RTR trigger.

- ☐ Drug substance section (3.2.S) is present, including a valid DMF reference or full data, with an authorized Letter of Authorization on file.
- ☐ Drug product section (3.2.P) is present and complete: description, composition, manufacture, control of excipients, control of drug product, container-closure, and stability.
- ☐ Batch records / executed batch information for the bio/registration batches are included as required.
- ☐ Stability data covers the required conditions and time points to support the requested expiry; protocol and commitment are stated.
- ☐ Comparative dissolution data versus the RLD (and f2 similarity where applicable) is present.

Section E — Bioequivalence (presence & basics)

- ☐ BE approach matches the product-specific guidance (PSG); any deviation is justified or pre-cleared via Controlled Correspondence.
- ☐ Required BE study reports (e.g., fasting and, where applicable, fed) are present with study design clearly described.
- ☐ Where a biowaiver is requested, the eligibility basis and supporting data are included.

Section F — eCTD technical validation

- ☐ Submission passes eCTD technical validation with no high-severity errors before transmission.

- ☐ Folder structure, leaf titles, hyperlinks, and bookmarks resolve correctly; the STF (where used) is valid.
- ☐ Fees (GDUFA) are paid and identifiers are correct, so the application is not held for an unpaid-fee status.

Final pre-filing sign-off

1. All six section checklists above are fully checked, with evidence filed.
2. A second qualified reviewer has independently re-checked Form 356h establishment data against Module 3.
3. A dated copy of this completed checklist is saved to your submission archive.

One habit that prevents most RTRs

Run a single “consistency pass” that traces every facility, strength, and RLD reference across Form 356h, the cover letter, labeling, and Module 3. The most common avoidable RTR causes are mismatches and omissions between these documents — not bad science.

Sources & further reading

This guide draws on the following publicly available FDA materials and regulations. Always confirm you are using the current version.

- ANDA Submissions — Refuse-to-Receive Standards (Guidance for Industry, Rev. 2, December 2016) — <https://www.fda.gov/files/drugs/published/ANDA-Submissions---Refuse-to-Receive-Standards-Rev.2.pdf>
- ANDA Submissions — Refuse-to-Receive Standards: Questions and Answers — <https://www.fda.gov/regulatory-information/search-fda-guidance-documents/anda-submissions-refuse-receive-standards-questions-and-answers-guidance-industry>
- 21 CFR 314.101 — Filing an NDA and receiving an ANDA (eCFR) — <https://www.ecfr.gov/current/title-21/chapter-I/subchapter-D/part-314/subpart-D/section-314.101>
- Common Discrepancies Observed on the Form 356h with the ANDA Submission (FDA, GDF 2025) — <https://www.fda.gov/media/187312/download>